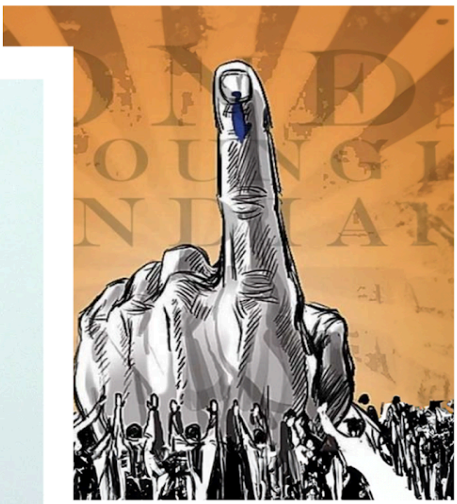
testbook PASS PRO MAX

General Knowledge

Indian Polity

STUDY NOTES

Fundamental Rights - I



testbook PASS PRO MAX

Fundamental Rights - I (Article 12-22)

Definition

- Fundamental Rights are a set of rights guaranteed by the Constitution of India to all citizens, ensuring individual liberty, equality, and justice. They are embedded in Part III of the Constitution.

Historical Background

- Inspired by the Universal Declaration of Human Rights and the Bill of Rights in the United States, Fundamental Rights were included in the Indian Constitution to promote democracy and protect citizens from arbitrary actions by the state.
- The original Constitution included seven Fundamental Rights, comprising the six existing rights along with the Right to Property. However, the 44th Amendment Act of 1978 removed the Right to Property from this list of Fundamental Rights.
- The Right to Property was reclassified as a legal right under Article 300-A in Part XII of the Constitution. As a result, there are now only six Fundamental Rights.

Purpose: The main aim of Fundamental Rights is to:-

- Safeguarding individual liberties and promoting the dignity of individuals.
- They guarantee equality before the law and forbid discrimination.
- Provide mechanisms for enforcement against violations.

List of Fundamental Rights:-

Articles	Right
14-18	Right to Equality
19-22	Right to Freedom
23-24	Right against Exploitation

25-28	Right to Freedom of Religion
29-30	Cultural and Educational Rights
32	Right to Constitutional Remedies

Enforcement

- Fundamental Rights can be enforced by the courts, and any law or action that violates these rights can be challenged.
- The Supreme Court has the power to issue writs for the enforcement of these rights.

Limitations

- Although Fundamental Rights are crucial, they are not unrestricted. Certain restrictions can be imposed for reasons of public order, morality, and the sovereignty of the nation, among others.

Fundamental Right (Article 12-22)

Article	Related Subject-Matter
12	**Definition of State**
	Defines "State" to include the Government and Parliament of India, local authorities, and other authorities under its control. This broad definition ensures that various entities, including municipalities and panchayats, are subject to Fundamental Rights.
13	**Laws Inconsistent with Fundamental Rights**
	Declares that any law inconsistent with Fundamental Rights shall be void. This

	includes laws made before the Constitution came into effect, ensuring that all legislation must conform to the Fundamental Rights guaranteed in the Constitution.
14	**Equality Before Law**
	Guarantees that every individual is equal before the law and prohibits discrimination by the State. This article establishes the principle that no individual is above the law, promoting justice and fairness in legal proceedings.
15	**Prohibition of Discrimination**
	It forbids discrimination based on religion, race, caste, sex, or place of birth. This provision is crucial in promoting social justice and equality, ensuring that all individuals have equal access to opportunities and resources.
16	**Equality of Opportunity in Matters of Public Employment**
	Guarantees equality of opportunity for all citizens in public employment and prohibits discrimination in recruitment. This article promotes merit-based hiring practices in government jobs, enhancing transparency and accountability.
17	**Abolition of Untouchability**
	It abolishes untouchability and prohibits its practice in any form. This is a significant step towards achieving social equality, addressing historical injustices faced by marginalized communities, particularly the Dalits.
18	**Abolition of Titles**
	Abolishes titles, except for military and academic distinctions, to promote equality among citizens. This provision prevents the establishment of social hierarchies based on titles and ensures that all citizens are treated equally.

testbook PASS PRO MAX

19	**Protection of Certain Rights Regarding Freedom of Speech, etc.**
	It guarantees six fundamental freedoms: speech, assembly, association, movement, residence, and profession. This article is essential for fostering a democratic society, allowing individuals to express their opinions and assemble freely.
20	**Protection in Respect of Conviction for Offences**
	Provides protection against retrospective criminal legislation (no person shall be convicted for an act that was not an offense when committed) and double jeopardy (no person shall be tried twice for the same offense). This ensures fairness in the justice system and protects individuals from arbitrary legal actions.
21	**Protection of Life and Personal Liberty**
	Guarantees the right to life and personal liberty, prohibiting deprivation except according to a procedure established by law. This article has been interpreted broadly to include various rights essential for living a dignified life.
22	**Protection Against Arrest and Detention in Certain Cases**
	It offers safeguards against arbitrary arrest and detention, including the right to be informed of the reasons for arrest and to consult a legal practitioner. This ensures that individuals are treated fairly and that their rights are protected during legal proceedings.

Article 12: Definition of "State"

- Article 12 defines the term "State" in the context of the Fundamental Rights guaranteed by the Constitution.

- **Broad Definition**: The definition is broad and inclusive, ensuring that any entity that exercises public functions and wields authority is considered part of the State. This includes:
    - The central government and state governments.
    - Local authorities (like municipalities and panchayats).
    - Any other authority created by the Constitution or law.
- Legal Accountability: By defining "State" this way, the Constitution holds all these bodies accountable for upholding Fundamental Rights, thus allowing individuals to challenge any violation of their rights by these entities.
- Judicial Review: It paves the way for judicial review, enabling the judiciary to scrutinize the actions and decisions of these entities to ensure they do not violate the Fundamental Rights of citizens.

Article 13: Laws Inconsistent with Fundamental Rights

- Judicial Supremacy: Article 13 empowers the judiciary to invalidate any law that violates Fundamental Rights, ensuring that the Constitution remains the supreme law of the land.
- Protection of Rights: It acts as a safeguard for individual rights against arbitrary legislative actions, ensuring that laws do not infringe upon the freedoms guaranteed by the Constitution.
- Clarity on Laws: The inclusion of various forms of laws (ordinances, by-laws, etc.) under the definition of "law" ensures comprehensive protection of Fundamental Rights, regardless of the type of legislative enactment.
- Historical Context: It nullifies pre-constitutional laws that were inconsistent with the rights granted under the Constitution, thus creating a uniform framework for the protection of rights.

- ### Article 13(1)
    - **Provision:** Any law in force before the Constitution came into effect is void to the extent of its inconsistency with Fundamental Rights.
    - **Significance:** This provision ensures that the Constitution nullifies outdated laws that may violate individual rights, promoting a progressive legal framework.

- ### Article 13(2)
    - **Provision:** The State cannot make laws that take away or abridge Fundamental Rights; any such law will be void to the extent of the contravention.

- **Significance:** It guarantees that no legislative action can undermine the rights provided in Part III of the Constitution, reinforcing the supremacy of individual rights over state laws.

- **Article 13(3)**
  - **Provision:** Defines "law" to include any ordinance, order, by-law, rule, regulation, notification, or any other instrument with the force of law.
  - **Significance:** This broad definition encompasses all forms of legislative actions, ensuring that all such actions are subject to the scrutiny of Fundamental Rights.

comparison of Articles 13 and 368 of the Indian Constitution

- **Article 13** is primarily concerned with the protection of Fundamental Rights against legislative encroachment, ensuring that all laws comply with these rights. It serves as a safeguard for individual freedoms.
- **Article 368** provides the framework for amending the Constitution, ensuring that it can evolve with changing societal needs while outlining the procedures for such amendments. It balances the need for flexibility in governance with the requirement for stability and continuity in the legal framework.

Articles 14 to 18 of the Indian Constitution

- **Article 14: Equality Before Law**
  - **Description:**
    - Guarantees that every individual is equal before the law and has the right to equal protection of the laws within the territory of India.
    - It prohibits discrimination by the State against any individual or group.
  - **Significance:**
    - Establishes the principle of equality and ensures that no person is above the law.
    - Promotes justice by ensuring that all individuals, regardless of their status, are treated equally in legal matters.
- **Article 15: Prohibition of Discrimination**
  - **Description**:
    - It prohibits discrimination against any citizen based on religion, race, caste, sex, or place of birth.
    - It also prohibits the State from discriminating against any citizen in matters of access to public places, employment, and services.

- **Significance:**
  - Strengthens social justice by ensuring equal treatment for all individuals.
  - Fosters inclusivity and protects marginalized communities from discrimination.

- **Article 16: Equality of Opportunity in Matters of Public Employment**
  - **Description:**
    - Guarantees equality of opportunity for all citizens in matters relating to public employment or appointment to any office under the State.
    - Prohibits discrimination in public employment on grounds similar to those mentioned in Article 15.
  - **Significance:**
    - Promotes meritocracy in public service, ensuring that recruitment and promotions are based on ability and performance rather than arbitrary factors.
    - Enhances transparency and accountability in government employment.

- **Article 17: Abolition of Untouchability**
  - **Description**:
    - It abolishes untouchability and bans its practice in any form.
    - Any enforcement of untouchability is punishable by law.
  - **Significance:**
    - Promotes social equality and dignity, especially for marginalized communities like Dalits.
    - Aims to eliminate caste-based discrimination and foster a more inclusive society.

- **Article 18: Abolition of Titles**
  - **Description:**
    - Abolishes titles, except for military and academic distinctions.
    - No citizen shall be granted any title by the State that would confer any special status or privilege.
  - **Significance:**
    - Prevents the establishment of social hierarchies based on titles, ensuring equality among citizens.
    - Encourages a sense of egalitarianism in society by promoting the idea that all individuals should be treated equally, regardless of their social or historical titles.

testbook PASS PRO MAX

- **Article 19: Protection of Certain Rights Regarding Freedom of Speech, etc.**
  - **Guarantees six fundamental freedoms to all citizens**:
    - Freedom of Speech and Expression: Allows individuals to express their thoughts and opinions freely.
    - Freedom of Assembly: The right to assemble peacefully without arms.
    - Freedom of Association: The right to form associations or unions.
    - Freedom of Movement: The right to move freely throughout the territory of India.
    - Right to Residence: The freedom to live and settle in any part of India.
    - Freedom of Profession: The right to practice any profession, or to carry on any occupation, trade, or business.
  - **Significance:**
    - Protects individual liberties and fosters democratic participation.
    - Enables citizens to express their views, gather for peaceful protests, associate with others, and pursue their livelihoods freely.
    - These freedoms are crucial for the effective functioning of a thriving democracy.
- **Article 20: Protection in Respect of Conviction for Offences**:
  - **Provides three key protections**:
    - Protection Against Retrospective Criminal Legislation: No person shall be convicted of an offense that was not an offense at the time it was committed.
    - Protection Against Double Jeopardy: No individual shall be tried twice for the same offense.
    - Protection Against Self-Incrimination: No person accused of an offense shall be compelled to be a witness against themselves.
  - **Significance:**
    - Safeguards individuals from arbitrary legal actions and ensures fairness in the justice system.
    - Upholds the principles of legality and fairness, protecting citizens from wrongful prosecution and punishment.
- **Article 21: Protection of Life and Personal Liberty**
  - It guarantees that no person shall be deprived of their life or personal liberty except through a procedure established by law.

testbook PASS PRO MAX

- This article has been expansively interpreted by the judiciary to include various rights essential for leading a dignified life (e.g., the right to privacy, right to a clean environment, right to health).
- **Significance:**
  - Ensures the right to a dignified life and prevents arbitrary detention.
  - Reinforces personal freedom and the protection of individual rights against state action, promoting human dignity.

- ## Article 22: Protection Against Arrest and Detention in Certain Cases

Provides safeguards against arbitrary arrest and detention:

1. Right to be Informed: An arrested person must be informed of the reasons for their arrest.
2. Right to Consult a Legal Practitioner: The arrested person has the right to consult and be defended by a legal practitioner of their choice.
3. Right to be Produced Before a Magistrate: The arrested person must be brought before a magistrate within 24 hours of the arrest, excluding travel time.
4. Protection Against Preventive Detention: Preventive detention is prohibited beyond three months without the approval of an advisory board.

- **Significance:**
  - Protects individual rights against state abuse, ensuring due process and the right to legal representation.
  - Prevents unlawful detention and abuse of power by the police, reinforcing the rule of law.

testbook PASS PRO MAX